

BEFORE THE LICENSED PROFESSIONAL COUNSELOR EXAMINERS BOARD

STATE OF COLORADO

OAC Case No. PCE 2010

Case No. 2010-002539

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE
PRACTICE OF PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
SHANNON MARIE WRIGHT, LPC, LICENSE NO. 5072

Respondent.

The Licensed Professional Counselor Examiners Board (the "Board"), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge ("ALJ") in accordance with the provisions of Article 43, Title 12, of the Mental Health Practice Act, of the Colorado Revised Statutes ("Act") and the Administrative Procedures Act ("APA"), and having reviewed the ALJ's Initial Decision, hereby enters the following findings and order:

BACKGROUND

1. Respondent Shannon Marie Wright ("Respondent") was served with a Summary Suspension on or about October 13, 2010.
2. Respondent was served with the Notice of Charges on or about October 28, 2010. To summarize, the Notice of Charges alleges the following:
 - a. On September 30, 2008, Respondent received her license as a professional counselor, number 5027
 - b. On August 5, 2009, Respondent pled guilty to driving under the influence in El Paso County Court case number 2009 T 502.
 - c. On or about September 17, 2009, Respondent was hired by Beyond Milestones as an Licensed Professional Counselor ("LPC").
 - d. On or about November 16, 2009, Respondent was taken from Beyond Milestones, where she was facilitating a group, to a hospital. Respondent had to spend the night at the hospital due to a high blood alcohol level.

- e. On August 9, 2010, Respondent pled guilty to driving under the influence in El Paso County Court case number 2009 M 5829.
 - f. Respondent is habitually intemperate or is a habitual user of alcoholic beverages, which renders her unfit to practice as an LPC, and constitutes a violation of C.R.S. §12-43-222(1)(b) and (e).
 - g. Respondent's actions at Beyond Milestones, including coming to work and facilitating a group while impaired by the use of alcohol, constitute acting in a manner that does not meet generally accepted standards of the professional discipline under which Respondent practices, in violation of C.R.S. § 12-43-222(1)(b) and (g).
3. A Motion for Entry of Default was filed on December 2, 2010; and the ALJ's Entry of Default was mailed on December 17, 2010 by first class mail to Respondent's last known address.
4. Respondent did not file a motion to set aside the Entry of Default.
5. The Initial Decision of the ALJ was rendered and received by the Board on March 8, 2011. A copy of the Initial Decision is attached to this Order. The Initial Decision is incorporated herein by reference.
6. The Initial Decision was served on Respondent and the Board's disciplinary counsel on March 14, 2011, via first-class mail.
7. On March 17, 2011, Respondent wrote a letter to the Board "with the intent to appeal your decision of revocations [sic] of my licensure." In the letter, Respondent does not deny that she received the Notice of Charges and failed to answer. Furthermore, Respondent does not deny that she facilitated a group at Beyond Milestones while under the influence of alcohol. However, in her defense, Respondent does state: "I have maintained sobriety for over 15 months since I completed two rehabilitation centers in December of 2009 through February 2010.
8. On March 29, 2011, Laurie Rottersman, AAG, filed the Board's Response to Appeal of Initial Decision identifying that:
- a. Respondent is deemed to admit the allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.
 - b. Respondent's appeal in the instant matter does not take issue with, or address, the ALJ's findings of fact.
 - c. The ALJ's Initial Decision is based on findings of fact, and Respondent's appeal does not contain any allegation that any of the ALJ's Findings of Fact are against the weight of the evidence.

- d. Respondent's appeal does not constitute the filing of exceptions within the meaning of §24-4-105(14)(a)(II), C.R.S. since she does not list any specific allegation of error or reason why the Board should modify the Initial Decision.

STANDARD OF REVIEW

9. C.R.S. § 24-4-105(15)(b) provides the standard under which the Board reviews a finding of evidentiary fact:

The findings of evidentiary fact, as distinguished from ultimate conclusions of fact, made by the administrative law judge or the hearing office shall not be set aside by the agency on review of the initial decision unless such findings of evidentiary fact are contrary to the weight of the evidence.

The "weight of the evidence" standard requires the Board to discover a clear error in the ALJ's findings before setting them aside. *Samaritan Inst. v. Prince-Walker*, 883 P.2d 3, 10 (Colo. 1994). Further, the Board must defer to the ALJ's findings of credibility and assessment of the weight given to evidence. *Id.* It is the role of the ALJ, not the Board, to resolve conflicts in evidence. *Board of Dental Examiners v. Micheli*, 928 P.2d 839, 841 (Colo. App. 1996).

10. Evidentiary facts are the historical facts underlying a controversy. In contrast, ultimate facts are conclusions of law or mixed questions of law and fact that are based on evidentiary facts and determine the rights and liabilities of the parties. As a general rule, ultimate facts are phrased in the language of the controlling statute or legal standard. *Board of Dental Examiners v. Major*, 996 P.2d 246, 248 (Colo. App. 1998). The Board may substitute its judgment for that of the ALJ with respect to findings of ultimate fact so long as the Board's determination has a reasonable basis in law and is supported by substantial evidence in the record. *Id.*

11. The Board has wide discretion to impose an appropriate sanction. *Colorado Real Estate Comm'n v. Hanegan*, 947 P.2d 933, 936 (Colo. 1997). A court must uphold the chosen sanction unless it: (1) bears no relation to the conduct complained of; (2) is manifestly excessive in relation to the needs of the public; or (3) is otherwise a gross abuse of the Board's discretion. *Id.*

ANALYSIS

I. Procedural Review

12. C.R.S. § 24-4-105(2)(b) provides that if any respondent fails to answer an administrative notice within thirty days after service, the ALJ may enter a default. The ALJ acted in accordance with the statute.

13. C.R.S. § 24-4-105(15)(a) provides that a respondent seeking to reverse or modify an ALJ decision will have twenty days after service of an initial decision to file a designation of record. The Respondent never filed a designation of record.

14. C.R.S. § 24-4-105(14)(a)(II) provides that a respondent will have thirty days after service of an initial decision to file exceptions to an initial decision. The Respondent never filed exceptions and the letter submitted does not suffice. *Lanphier v. Department of Pub. Health & Env't*, 179 P.3d 148, 151-53 (Colo. App. 2007).

15. Although C.R.S. § 24-4-105(14)(b)(III) provides that if a respondent fails to file exceptions, the initial decision shall become the decision of the agency, the agency nonetheless initiated review of the initial decision on its own motion under C.R.S. § 24-4-105(14)(a)(II) by order dated March 14, 2011. Subsection (14) is not intended to limit the jurisdiction of an agency to review an initial decision outside of the thirty-day period so long as the agency's motion to review was timely made. *Cornell v. State Bd. Of Pharmacy*, 813 P.2d 771 (Colo. App. 1990).

16. Even if the Respondent's letter is construed as the proper filing of exceptions, because the Respondent did not file a designation of record, the Respondent is limited under C.R.S. § 24-4-105(15)(a) to objecting to matters that are questions of law.

II. Substantive Review

17. Respondent does not challenge the evidentiary findings of fact relating to her pleading guilty to driving under the influence and conducting a group session while under the influence of alcohol. Substantively, then, the Board can only review the legal conclusions.

18. C.R.S. § 12-43-222(1)(e) provides that Respondent is in violation of the statute if she is "habitually intemperate or excessively uses ... any alcoholic beverage[.]" Between August of 2009 and August of 2010, Respondent twice pled guilty to driving under the influence and, additionally, went to work in such an intoxicated state that she required hospitalization. Even assuming that Respondent has been sober for the past 15 months, the Board believes that Respondent's actions demonstrate habitual intemperance and excessive use of alcohol.

19. C.R.S. § 12-43-222(1)(g) provides that Respondent is in violation of the statute if her actions failed to meet the generally accepted standards of an LPC. The Administrative Procedure Act expressly provides: "An agency may utilize its experience, technical competence, and specialized knowledge in the evaluation of the evidence presented to it." C.R.S. § 24-4-105(5). Based on the Board's specialized knowledge, and common sense, the Board believes that leading a group session while intoxicated falls below the generally accepted standard of practice for an LPC.

CONCLUSION

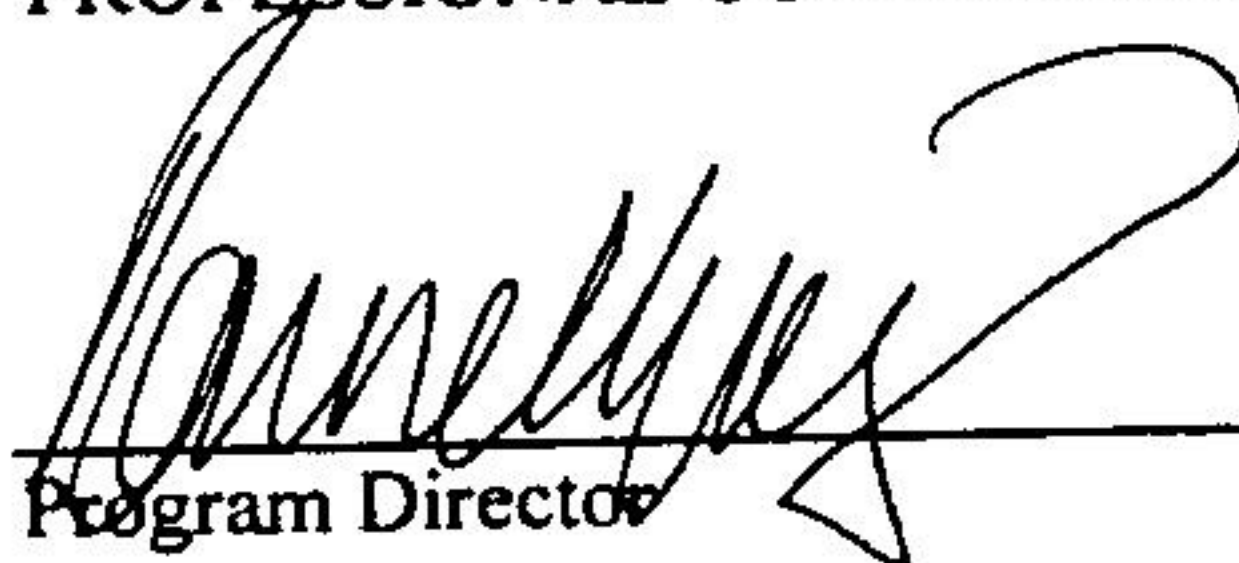
20. Upon review of the Initial Decision and Record, the Board hereby:

- a. Accepts Findings of Fact, Paragraphs 1 through 7.
- b. Adopts Conclusions of Law, Paragraphs 1-4.
- c. Adopts the recommended sanction in the last paragraph, specifically that Respondent's license to practice as a professional counselor is revoked.

IT IS THEREFORE ORDERED by the Board that Respondent's license to practice as a professional counselor is revoked from the effective date of this Final Agency Order. The Final Agency Order is hereby effective upon signature.

SO ORDERED this 25th day of May, 2011.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



Program Director

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17 TH Street, 14 TH Floor, Denver, Colorado 80202	▲ COURT USE ONLY ▲
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. SHANNON MARIE WRIGHT, LPC, LICENSE NO. 5072, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Licensed Professional Counselor Examiners Board ("the Board") involving the license to practice professional counseling of Shannon Marie Wright, LPC, ("Respondent"). The Board was represented by Laurie Rottersman, Assistant Attorney General, Business and Licensing Section. Based upon Respondent's failure to file a timely Answer to the Board's Notice of Charges, an Entry of Default was issued on December 17, 2010. Pursuant to Section 24-4-105 (2)(b), C.R.S., Respondent had ten (10) days to show good cause why the default should be set aside. A motion to set aside the default was not filed, and this matter is ready for the issuance of an Initial Decision Upon Default.

FINDINGS OF FACT

1. The last address furnished by Respondent to the Board is [REDACTED]
2. Notice of the nature of this proceeding, the legal authority and jurisdiction under which it was held, and the matters of fact and law asserted were mailed to Respondent at her last known address stated above via first class mail on October 28, 2010.
3. The Notice of Duty to Answer notified Respondent that failure to respond to the Notice of Charges within thirty (30) days could result in a default decision issued against Respondent's license to practice in the State of Colorado.
4. Respondent has not filed a written answer to the Notice of Charges.
5. The Board's Motion for Entry of Default was mailed by first class mail to Respondent's last known address on December 2, 2010.

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MENTAL HEALTH BOARD

6. The Administrative Law Judge's Entry of Default was mailed by first class mail to Respondent at her last known address on December 17, 2010. Respondent did not file a motion to set aside the Entry of Default.

7. Respondent is deemed to have admitted the allegations in the Notice of Charges, which are incorporated herein as Findings of Fact.

CONCLUSIONS OF LAW

1. Respondent has received timely notice of the time, place, and nature of the charges; of all matters of fact and law asserted; and of all matters required by Section 24-4-105(2)(a), C.R.S., in the manner required by that section.

2. The Board has jurisdiction over Respondent and over her license as a professional counselor.

3. By virtue of Respondent's default, the Board is entitled to the relief requested in the Notice of Charges and Motion for Entry of Default. See Section 24-4-105(2)(b), C.R.S., and Rule 8 of the Rules of Procedure of the Office of Administrative Courts (1 CCR 104-1).

4. The deemed allegations constitute violations of law as set forth in the Notice of Charges.

INITIAL DECISION

The Board is seeking discipline against Respondent's license based on the Board having received information that Respondent is habitually intemperate and/or excessively uses alcohol, and that Respondent came to work and attempted to perform her work duties while impaired by the use of alcohol, as proscribed by Sections 12-43-222(1) (e), and (g), C.R.S. There is no additional basis to impose sanction per Section 12-43-222(1) (b). The Board had the authority to bring this disciplinary action pursuant to Sections 12-43-221, 223, and 224; and 24-4-104 and 105, C.R.S.

The Board seeks an Order revoking Respondent's license to practice as a professional counselor. Respondent failed to file a written Answer to the Notice of Charges. The Administrative Law Judge has no information that a ruling other than revocation of Respondent's license is appropriate in this case.

Therefore, it is the Administrative Law Judge's Initial Decision that Respondent's license to practice as a professional counselor is revoked.

DONE AND SIGNED March 8, 2011.


MATTHEW E. NORWOOD
Administrative Law Judge